



COMMISSION ON THE STATUS OF WOMEN (CSW)

Background Paper

Topic: The Impact of Abortion Laws on Women's Health

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I. The Commission on the Status of Women (CSW): History and Powers

The Commission on the Status of Women (CSW) is a functional commission of the United Nations Economic and Social Council (ECOSOC), established in 1946. It is the principal global intergovernmental body dedicated exclusively to the promotion of gender equality and the empowerment of women.

Historical Background

CSW was created shortly after the founding of the United Nations to monitor and promote women's rights worldwide. Over the decades, it has played a central role in advancing global frameworks for gender equality.

One of its most significant contributions was its involvement in promoting the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW) in 1979. CSW has also been instrumental in organizing global conferences on women's rights, including the 1995 Beijing Conference, which produced the Beijing Declaration and Platform for Action.

Today, CSW continues to evaluate progress, identify challenges, and formulate policy recommendations related to gender equality.

Powers and Functions

CSW has the authority to:

- Make recommendations and reports to ECOSOC
- Promote women's rights in political, economic, civil, social, and educational fields
- Monitor the implementation of international agreements on gender equality
- Encourage global dialogue and cooperation on women's issues

Although CSW resolutions are not legally binding, they strongly influence national legislation and international gender policy frameworks.

II. Introduction to the Topic

Abortion laws vary significantly across countries, ranging from full legal access to total prohibition. These legal frameworks directly influence women's access to reproductive healthcare services and can have profound consequences for women's physical and mental health.

The relationship between abortion legislation and women's health outcomes has become a central issue in global discussions on gender equality, public health, and human rights.

III. Historical and Legal Background

Throughout history, abortion laws have reflected cultural, religious, political, and social values. In recent decades, some countries have expanded access to safe and legal abortion services, while others have introduced stricter regulations or bans.

International human rights frameworks, including CEDAW and various World Health Organization (WHO) guidelines, emphasize the importance of access to safe reproductive healthcare services as part of women's right to health.

However, restrictive abortion laws in certain regions have been associated with:

- Increased rates of unsafe abortions
- Higher maternal mortality and morbidity
- Criminalization of women and healthcare providers
- Delays in accessing emergency obstetric care

Unsafe abortion remains a significant contributor to preventable maternal deaths globally.

IV. Health and Socio-Economic Impacts

The impact of abortion laws extends beyond legal debates and directly affects women's health and socio-economic stability.

1. Maternal Mortality and Morbidity

Restrictive laws may lead to unsafe procedures, increasing the risk of infection, hemorrhage, infertility, and death.

2. Mental Health Consequences

Limited access to reproductive healthcare may contribute to psychological distress, anxiety, and long-term trauma.

3. Economic Inequality

Women with fewer financial resources are disproportionately affected by restrictive laws, as they may lack access to safe medical services.

4. Healthcare System Strain

Complications from unsafe abortions place additional pressure on already limited healthcare systems.

5. Gender Inequality

Restrictions on reproductive autonomy can reinforce systemic gender inequalities in education, employment, and social participation.

V. International Framework

Relevant international frameworks include:

- Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)
- Universal Declaration of Human Rights
- International Covenant on Economic, Social and Cultural Rights
- Sustainable Development Goals (SDGs), especially:
 - SDG 3: Good Health and Well-being
 - SDG 5: Gender Equality

While international agreements promote women's health and gender equality, abortion legislation remains under national jurisdiction, leading to significant global disparities.

VI. Current Situation (2026 Context)

As of 2026:

- Some countries have expanded reproductive healthcare access.
- Others have introduced stricter abortion regulations or bans.

- Global debates continue regarding reproductive rights, public health, and national sovereignty.
- International organizations emphasize reducing preventable maternal mortality and ensuring equitable healthcare access.

The issue remains politically sensitive and varies widely across regions.

VII. Key Questions for Debate

Delegates should consider:

- How do abortion laws affect maternal mortality rates?
- What balance should be struck between national sovereignty and international human rights standards?
- How can access to safe reproductive healthcare be improved while respecting cultural diversity?
- What policies can reduce unsafe abortion practices?
- How can healthcare systems better support women's physical and mental health?

VIII. Conclusion

The impact of abortion laws on women's health is a complex issue at the intersection of public health, human rights, ethics, and national legislation.

The Commission on the Status of Women plays a critical role in:

- Promoting gender equality
- Encouraging evidence-based policy discussions
- Supporting women's health and rights
- Facilitating international cooperation

Delegates must approach this topic with sensitivity, diplomacy, and a commitment to protecting women's health and dignity worldwide.

Document drafted and edited by [María José Fortanet Cárdenas](#).